

**Court No. - 3**

**Case :-** WRIT - C No. - 21748 of 2017

**Petitioner :-** Bachhan Pandey

**Respondent :-** State Of U.P. & 3 Others

**Counsel for Petitioner :-** Varun Kumar Srivastava

**Counsel for Respondent :-** C.S.C.,Mahboob Ahmad

**Hon'ble Krishna Murari,J.**

**Hon'ble Ravindra Nath Kakkar,J.**

Heard learned counsel for the petitioner and Sri R.S. Umrao holding brief of Sri Mahboob Ahmad appearing for respondents no. 2, 3 & 4.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the impugned recovery certificate dated 15.12.2015/20.2.2016 issued by the respondent no. 3.

Learned counsel for the petitioner submits that without giving any notice or opportunity of hearing to the petitioner and without making provisional assessment, straightway the impugned recovery certificate dated 15.12.2015/20.2.2016 has been issued.

Sri R.S. Umrao holding brief of Sri Mahboob Ahmad, learned counsel for the respondent nos. 2, 3 & 4, on the basis of instruction, fairly states that the provisional assessment has not been made. Copy of the instruction filed by Sri Umrao is taken on record.

In the absence of provisional assessment in compliance of the provisions contained under clause 6.8(b) of the U.P. Electricity Supply Code, 2005, which is mandatory, the impugned recovery certificate dated 15.12.2015/20.2.2016 (annexure-5 to the writ petition) issued by the respondent no. 3 is not liable to be sustained and is hereby quashed.

Writ petition stands allowed.

However, it shall be open to the respondents to make a fresh assessment after following the procedure prescribed.

However, there shall be no order as to costs.

**Order Date :-** 19.5.2017

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